

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1230

AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 4-21.5-2.5-9, AS ADDED BY P.L.215-2017, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. The agency shall determine if the alleged violator has substantially corrected the violation and notify the alleged violator whether the alleged violator is in substantial compliance with the applicable rule or state statute not more than ~~thirty (30)~~ **ninety (90)** days after the earlier of the date that:

- (1) the alleged violation must be corrected under the corrective plan; or
- (2) the alleged violator notifies the agency that the alleged violator has corrected the violation.

SECTION 2. IC 25-0.5-7-1, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. This chapter sets forth the entities for which the Indiana professional licensing agency performs administrative functions, duties, and responsibilities under ~~IC 25-1-6-3(a)~~ **IC 25-1-5-3**.

SECTION 3. IC 25-0.5-7-2, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana board of accountancy (IC 25-2.1-2-1) under ~~IC 25-1-6-3(a)~~.

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IC 25-1-5-3.

SECTION 4. IC 25-0.5-7-3, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the board of registration for architects and landscape architects (IC 25-4-1-2) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 5. IC 25-0.5-7-4, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana auctioneer commission (IC 25-6.1-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 6. IC 25-0.5-7-5, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of cosmetology and barber examiners (IC 25-8-3-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 7. IC 25-0.5-7-6, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of funeral and cemetery service (IC 25-15-9) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 8. IC 25-0.5-7-7, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of registration for professional engineers (IC 25-31-1-3) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 9. IC 25-0.5-7-8, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana plumbing commission (IC 25-28.5-1-3) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 10. IC 25-0.5-7-9, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana real estate commission (IC 25-34.1) under ~~IC 25-1-6-3(a)~~.

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IC 25-1-5-3.

SECTION 11. IC 25-0.5-7-10, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the real estate appraiser licensure and certification board (IC 25-34.1-8-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 12. IC 25-0.5-7-11, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the private investigator and security guard licensing board (IC 25-30-1-5.2) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 13. IC 25-0.5-7-12, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of registration for professional surveyors (IC 25-21.5-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 14. IC 25-0.5-7-13, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the manufactured home installer licensing board (IC 25-23.7) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 15. IC 25-0.5-7-14, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the home inspectors licensing board (IC 25-20.2-3-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 16. IC 25-0.5-7-15, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of massage therapy (IC 25-21.8-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 17. IC 25-1-5-1, AS AMENDED BY P.L.206-2005, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The centralization of staff, functions, and services contemplated by this chapter shall be done in such a way as to enhance the Indiana professional licensing agency's ability to:

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- (1) make maximum use of data processing as a means of more efficient operation; ~~and~~
- (2) provide more services and carry out functions of superior quality; **and**
- (3) significantly reduce the number of staff needed to provide services and carry out the agency's functions.**

SECTION 18. IC 25-1-5-2, AS AMENDED BY P.L.3-2014, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The following terms are defined for this chapter:

- (1) "Agency" means the Indiana professional licensing agency established by section 3 of this chapter.
- (2) "Board" means any agency, board, advisory committee, or group described in IC 25-0.5-5 **or IC 25-0.5-7.**

SECTION 19. IC 25-1-5-3, AS AMENDED BY P.L.3-2014, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) There is established the Indiana professional licensing agency. The agency shall perform all administrative functions, duties, and responsibilities assigned by law or rule to the executive director, secretary, or other statutory administrator of the entities described in IC 25-0.5-5 **or IC 25-0.5-7.**

(b) Nothing in this chapter may be construed to give the agency policy making authority, which authority remains with each board.

SECTION 20. IC 25-1-5-4, AS AMENDED BY P.L.249-2023, SECTION 79, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The agency shall employ necessary staff, including specialists and professionals, to carry out the administrative duties and functions of the boards, including but not limited to:

- (1) notice of board meetings and other communication services;
- (2) recordkeeping of board meetings, proceedings, and actions;
- (3) recordkeeping of all persons licensed, regulated, or certified by a board;
- (4) administration of examinations; and
- (5) administration of license or certificate issuance or renewal.

(b) In addition, the agency:

- (1) shall prepare a consolidated statement of the budget requests of all the boards described in IC 25-0.5-5 **or IC 25-0.5-7;**
- (2) may coordinate licensing or certification renewal cycles, examination schedules, or other routine activities to efficiently utilize agency staff, facilities, and transportation resources, and to improve accessibility of board functions to the public;
- (3) may consolidate, where feasible, office space, recordkeeping,



and data processing services;

(4) shall operate and maintain the electronic registry of professions established under IC 25-1-5.5;

(5) shall post each board's public meeting agenda on the applicable board's website not less than seventy-two (72) hours before a board's public meeting;

(6) shall post each board's public meeting minutes on the applicable board's website not more than fourteen (14) calendar days after adoption of the minutes by the board;

(7) shall post any vacancy on a board on the applicable board's website within fourteen (14) calendar days of the vacancy;

(8) notwithstanding any other law:

(A) shall prescribe the application form and manner for each board; and

(B) shall make any new application form publicly available on the applicable board's website for sixty (60) calendar days before being adopted by the agency; and

(9) shall send notification of incomplete items in an application to the applicant every fourteen (14) calendar days after the applicant initiates the application until the earlier of the following:

(A) The date the application is completed.

(B) One (1) calendar year after the applicant initiates the application.

(c) In administering the renewal of licenses or certificates under this chapter, the agency shall send a notice of the upcoming expiration of a license or certificate to each holder of a license or certificate at least ninety (90) days before the expiration of the license or certificate. The notice must inform the holder of the license or certificate of the need to renew **the license or certificate** and the requirement of payment of the renewal fee. If this notice of expiration is not sent by the agency, the holder of the license or certificate is not subject to a sanction for failure to renew if, once notice is received from the agency, the license or certificate is renewed within forty-five (45) days after receipt of the notice.

(d) In administering an examination for licensure or certification, the agency shall make the appropriate application forms available at least thirty (30) days before the deadline for submitting an application to all persons wishing to take the examination.

(e) The agency may require an applicant for license **or certificate** renewal to submit evidence proving that:

(1) the applicant continues to meet the minimum requirements for



licensure **or certificate**; and

(2) the applicant is not in violation of:

(A) the statute regulating the applicant's profession; or

(B) rules adopted by the board regulating the applicant's profession.

(f) The agency shall process an application for renewal of a license or certificate:

(1) not later than ten (10) days after the agency receives all required forms and evidence; or

(2) within twenty-four (24) hours after the time that an applicant for renewal appears in person at the agency with all required forms and evidence.

This subsection does not require the agency to issue a renewal license or certificate to an applicant if subsection (g) applies.

(g) The agency may delay issuing a license **or certificate** renewal for up to one hundred twenty (120) days after the renewal date for the purpose of permitting the board to investigate information received by the agency that the applicant for renewal may have committed an act for which the applicant may be disciplined. If the agency delays issuing a license **or certificate** renewal, the agency shall notify the applicant that the applicant is being investigated. Except as provided in subsection (h), before the end of the one hundred twenty (120) day period, the board shall do one (1) of the following:

(1) Deny the license **or certificate** renewal following a personal appearance by the applicant before the board.

(2) Issue the license **or certificate** renewal upon satisfaction of all other conditions for renewal.

(3) Issue the license **or certificate** renewal and file a complaint under IC 25-1-7.

(4) Upon agreement of the applicant and the board and following a personal appearance by the applicant before the board, renew the license **or certificate** and place the applicant on probation status under IC 25-1-9-9.

(h) If an individual fails to appear before the board under subsection (g), the board may take action on the applicant's license **or certificate** allowed under subsection (g)(1), (g)(2), or (g)(3).

(i) The applicant's license **or certificate** remains valid until the final determination of the board is rendered unless the renewal is denied or the license is summarily suspended under IC 25-1-9-10.

(j) The license **or certificate** of the applicant for a license **or certificate** renewal remains valid during the one hundred twenty (120) day period unless the license **or certificate** renewal is denied following



a personal appearance by the applicant before the board before the end of the one hundred twenty (120) day period. If the one hundred twenty (120) day period expires without action by the board, the license ~~shall be~~ **or certificate is** automatically renewed at the end of the one hundred twenty (120) day period.

(k) The board's renewal of a license **or certificate** does not preclude the board from imposing sanctions on the licensee **or certificate holder** as a result of a complaint filed by the attorney general after renewal of the license **or certificate**.

(l) Notwithstanding any other statute **or rule**, the agency may stagger license or certificate renewal cycles. However, if a renewal cycle for a specific board or committee is changed, the agency must obtain the approval of the affected board or committee.

(m) An application for a license, certificate, registration, or permit is abandoned without an action of the board, if the applicant does not complete the requirements to complete the application within one (1) year after the date on which the application was filed. However, the board may, for good cause shown, extend the validity of the application for additional thirty (30) day periods. An application submitted after the abandonment of an application is considered a new application.

SECTION 21. IC 25-1-5-4.7 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.7. A person who has a license or certificate renewal denied by a board described in IC 25-0.5-7 may file an appeal of the denial under IC 4-21.5-3.**

SECTION 22. IC 25-1-5-5, AS AMENDED BY P.L.3-2014, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 5. (a) The agency shall be administered by an executive director appointed by the governor who shall serve at the will and pleasure of the governor.**

(b) The executive director must be qualified by experience and training.

(c) The term "executive director" or "secretary", or any other statutory term for the administrative officer of a board described in IC 25-0.5-5 or IC 25-0.5-7, means the executive director of the agency or the executive director's designee.

(d) The executive director is the chief fiscal officer of the agency and is responsible for hiring of all staff, and for procurement of all services and supplies in accordance with IC 5-22. The executive director may appoint not more than three (3) deputy directors, who must be qualified to work for the boards which are served by the agency.

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(e) The executive director shall execute a bond payable to the state, with surety to consist of a surety or guaranty corporation qualified to do business in Indiana, in an amount fixed by the state board of accounts, conditioned upon the faithful performance of duties and the accounting for all money and property that come into the executive director's hands or under the executive director's control. The executive director may likewise cause any employee of the agency to execute a bond if that employee receives, disburses, or in any way handles funds or property of the agency. The costs of any such bonds shall be paid from funds available to the agency.

(f) The executive director may present to the general assembly legislative recommendations regarding operations of the agency and the boards it serves, including adoption of four (4) year license or certificate renewal cycles wherever feasible.

(g) The executive director may execute orders, subpoenas, continuances, and other legal documents on behalf of a board or committee when requested to do so by the board or committee.

(h) The executive director or the executive director's designee may, upon request of a board or committee, provide advice and technical assistance on issues that may be presented to the boards or committees.

SECTION 23. IC 25-1-5-11, AS AMENDED BY P.L.143-2025, SECTION 42, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) As used in this section, "applicant" means an individual who applies for a license, certificate, registration, or permit issued by a board under this title.

(b) As used in this section, "licensee" means an individual who is or has been licensed, certified, or registered by a board under this title.

(c) As used in this section, "personal information" means the following:

- (1) Home telephone number.
- (2) Electronic mail address.

(3) Mailing address.

(d) Except as otherwise provided in this section, the personal information of an individual who is:

- (1) a licensee;
- (2) an applicant; or
- (3) a board member;

is confidential for purposes of IC 5-14-3-4 and may not be disclosed to the public by the agency or a board.

(e) Except as provided in IC 25-23-1-12.6, an applicant or a licensee shall provide the applicant's or licensee's Social Security number to the agency.



(f) The agency and the boards shall collect and release the applicant's or licensee's Social Security number as provided in state or federal law.

(g) Notwithstanding IC 4-1-10-3, the agency and the boards may allow access to the Social Security number of each applicant or licensee to:

- (1) a testing service that provides the examination for licensure, certification, or registration to the agency or the boards; or
- (2) an individual state regulatory board or an organization composed of state regulatory boards for the applicant's or licensee's profession for the purpose of coordinating:
 - (A) licensure, certification, or registration; and
 - (B) disciplinary activities among the individual states.

(h) Notwithstanding subsection (d), the agency or a board may disclose personal information of an individual described in subsection (d) if the person requesting the information provides proof of identity and represents that the use of the personal information will be strictly limited to at least one (1) of the following:

- (1) For use by a government agency, including a court or law enforcement agency, in carrying out its functions, or a person acting on behalf of a government agency in carrying out its functions.
- (2) For use in connection with a civil, a criminal, an administrative, or an arbitration proceeding in a court or government agency or before a self-regulatory body, including the service of process, investigation in anticipation of litigation, and the execution or enforcement of judgments and orders, or under an order of a court.
- (3) For use in research activities, and for use in producing statistical reports, as long as the personal information is not published, re-disclosed, or used to contact the individuals who are the subject of the personal information.
- (4) For use by any person, when the person demonstrates, in a form and manner prescribed by the agency, that written consent has been obtained from the individual who is the subject of the information.
- (5) For any other use specifically authorized by law that is related to the agency or a board or to public safety.

SECTION 24. IC 25-1-5-12 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 12. (a) The agency and the boards shall allow the department of state revenue, the alcohol and tobacco commission,**

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and the bureau of motor vehicles access to the name of each person who:

- (1) is licensed under this article; or
- (2) has applied for a license under this article.

(b) If the department of state revenue notifies the agency that a person is on the most recent tax warrant list, the agency shall not issue or renew the person's license until:

- (1) the person provides to the agency a statement from the department of state revenue indicating that the person's tax warrant has been satisfied; or
- (2) the agency receives a notice from the commissioner of the department of state revenue under IC 6-8.1-8-2(k).

(c) If the alcohol and tobacco commission notifies the agency that a person has an outstanding balance due to the alcohol and tobacco commission, the agency shall not issue or renew the person's license until the person provides to the agency a statement from the alcohol and tobacco commission indicating that the person's outstanding balance has been satisfied.

(d) If the bureau of motor vehicles notifies the agency that a person has an outstanding balance due to the bureau of motor vehicles because a check, draft, or order issued or delivered by the person to the bureau of motor vehicles was returned or dishonored because of insufficient funds, the agency shall not issue or renew the person's license until the person provides to the agency a statement from the bureau of motor vehicles indicating that the person's outstanding balance has been satisfied.

SECTION 25. IC 25-1-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Professional Licensing Agency Functions and Duties).

SECTION 26. IC 25-1-9-9 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The board may impose any of the following sanctions, singly or in combination, if it finds that a practitioner is subject to disciplinary sanctions under section 4, 5, 6, 6.7, or 6.9 of this chapter or IC 25-1-5-4:

- (1) Permanently revoke a practitioner's license.
- (2) Suspend a practitioner's license.
- (3) Censure a practitioner.
- (4) Issue a letter of reprimand.
- (5) Place a practitioner on probation status and require the practitioner to:
 - (A) report regularly to the board upon the matters that are the basis of probation;
 - (B) limit practice to those areas prescribed by the board;



(C) continue or renew professional education under a preceptor, or as otherwise directed or approved by the board, until a satisfactory degree of skill has been attained in those areas that are the basis of the probation; or

(D) perform or refrain from performing any acts, including community restitution or service without compensation, that the board considers appropriate to the public interest or to the rehabilitation or treatment of the practitioner.

(6) Assess a fine **as follows against the practitioner in an amount not to exceed one thousand dollars (\$1,000)** for each violation listed in section 4 of this chapter, except for a finding of incompetency due to a physical or mental disability:

(A) For an individual practitioner, in an amount not to exceed one thousand dollars (\$1,000) per violation.

(B) For a business entity, in an amount not to exceed five thousand dollars (\$5,000) per violation.

When imposing a fine, the board shall consider a practitioner's ability to pay the amount assessed. If the practitioner fails to pay the fine within the time specified by the board, the board may suspend the practitioner's license without additional proceedings. However, a suspension may not be imposed if the sole basis for the suspension is the practitioner's inability to pay a fine.

(b) The board may withdraw or modify the probation under subsection (a)(5) if it finds, after a hearing, that the deficiency that required disciplinary action has been remedied, or that changed circumstances warrant a modification of the order.

SECTION 27. IC 25-1-11-12, AS AMENDED BY P.L.83-2024, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) The board may impose any of the following sanctions, singly or in combination, if the board finds that a practitioner is subject to disciplinary sanctions under sections 5 through 9 of this chapter:

(1) Permanently revoke a practitioner's license.

(2) Suspend a practitioner's license.

(3) Censure a practitioner.

(4) Issue a letter of reprimand.

(5) Place a practitioner on probation status and require the practitioner to:

(A) report regularly to the board upon the matters that are the basis of probation;

(B) limit practice to those areas prescribed by the board;

(C) continue or renew professional education approved by the



board until a satisfactory degree of skill has been attained in those areas that are the basis of the probation;

(D) perform or refrain from performing any acts, including community restitution or service without compensation, that the board considers appropriate to the public interest or to the rehabilitation or treatment of the practitioner; or

(E) satisfactorily complete a peer review specified by the board as a condition for termination of probationary status if the practitioner is a licensee (as defined in IC 25-2.1-1-8).

(6) Assess a civil penalty **as follows against the practitioner for not more than one thousand dollars (\$1,000)** for each violation listed in sections 5 through 9 of this chapter except for a finding of incompetency due to a physical or mental disability:

(A) For an individual practitioner, in an amount not to exceed one thousand dollars (\$1,000) per violation.

(B) For a business entity, in an amount not to exceed five thousand dollars (\$5,000) per violation.

(7) Order a practitioner to pay consumer restitution to a person who suffered damages as a result of the conduct or omission that was the basis for the disciplinary sanctions under this chapter.

(b) When imposing a civil penalty under subsection (a)(6), the board shall consider a practitioner's ability to pay the amount assessed. If the practitioner fails to pay the civil penalty within the time specified by the board, the board may suspend the practitioner's license without additional proceedings. However, a suspension may not be imposed if the sole basis for the suspension is the practitioner's inability to pay a civil penalty.

(c) The board may withdraw or modify the probation under subsection (a)(5) if the board finds after a hearing that the deficiency that required disciplinary action has been remedied or that changed circumstances warrant a modification of the order.

SECTION 28. IC 25-2.1-4-2, AS AMENDED BY P.L.177-2015, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Subject to IC 25-1-2-6(e), an initial and renewed certificate expires on the date established by the licensing agency under ~~IC 25-1-6-4~~. **IC 25-1-5-4.**

(b) An individual may renew a certificate by paying a renewal fee and complying with the continuing education requirements established under section 5 of this chapter on or before the expiration date of the certificate.

(c) If an individual fails to pay a renewal fee on or before the expiration date of a certificate, the certificate becomes invalid without



further action by the board.

(d) If an individual holds a certificate that has been invalid for not more than three (3) years, the board shall reinstate the certificate if the individual meets the requirements of IC 25-1-8-6(c).

(e) If more than three (3) years have elapsed since the date a certificate expired, the individual who holds the certificate may seek reinstatement of the certificate by satisfying the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 29. IC 25-2.1-9-3, AS AMENDED BY P.L.197-2011, SECTION 82, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) If the board has reason to believe that the subject of an investigation has committed a violation of this article or IC 25-1-11:

- (1) the board shall direct that a complaint be issued under IC 25-1-7, if the subject of the investigation is a licensee; and
- (2) the board shall take appropriate action under IC 25-1-7-14, if the subject of the investigation is not a licensee.

(b) Subsection (a) does not prohibit the board from taking an action permitted under IC 25-1 or IC 25-2.1-8-2, including an action under the following:

- (1) IC 25-1-4-5 (conditional license and other actions related to continuing education or lapsed license).
- (2) ~~IC 25-1-6-4~~ **IC 25-1-5-4** (refusal to issue a license or placement on probationary status).

(c) If the board does not proceed under subsection (a) or (b), the board shall close the matter and may release the information only with the consent of the individual or firm that was under investigation.

SECTION 30. IC 25-4-1-14, AS AMENDED BY P.L.177-2015, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) Subject to IC 25-1-2-6(e), every registered architect who continues in active practice shall, biennially, on or before the date established by the licensing agency under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, renew the registered architect's certificate of registration and pay the required renewal fee.

(b) An architect registered or licensed in Indiana who has failed to renew the architect's certificate of registration for a period of not more than five (5) years may have the certificate of registration reinstated by meeting the requirements of IC 25-1-8-6(c).

(c) An architect registered in Indiana who has failed to renew the architect's certificate of registration for more than five (5) years may have the certificate of registration reinstated by satisfying the requirements for reinstatement under IC 25-1-8-6(d).



(d) If any registered architect desires to retire from the practice of architecture in Indiana, the architect may submit to the board the architect's verified statement of intention to withdraw from practice. The statement shall be entered upon the records of the board. During the period of the architect's retirement, the architect is not liable for any renewal or restoration fees.

(e) If any retired architect desires to return to the practice of architecture in Indiana, the retired architect must meet the following requirements:

(1) If the certificate of registration has been expired for not more than five (5) years, the retired architect must:

- (A) file with the board a verified statement indicating the architect's desire to return to the practice of architecture; and
- (B) pay a renewal fee equal to the fee set by the board to renew an unexpired registration under this chapter.

(2) If the certificate of registration has been expired for more than five (5) years, the retired architect must:

- (A) file with the board a verified statement indicating the architect's desire to return to the practice of architecture;
- (B) pay a renewal fee equal to the fee set by the board to renew an unexpired registration under this chapter; and
- (C) complete remediation and additional training established by the board based on the length of time the certificate of registration has been expired.

SECTION 31. IC 25-4-2-8.5, AS ADDED BY P.L.105-2008, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8.5. (a) Every registered landscape architect who continues in active practice shall biennially, on or before the date established by the licensing agency under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, renew the registered landscape architect's certificate of registration and pay the required renewal fee.

(b) A landscape architect registered in Indiana who has failed to renew the landscape architect's certificate of registration for a period of not more than five (5) years may have the certificate of registration reinstated by meeting the requirements of IC 25-1-8-6(c).

(c) A landscape architect registered in Indiana who has failed to renew the landscape architect's certificate of registration for a period of more than five (5) years may have the certificate of registration reinstated by satisfying the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 32. IC 25-6.1-3-2, AS AMENDED BY P.L.158-2018, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 2. (a) Every individual, before acting as an auctioneer, must obtain a license from the commission.

(b) An applicant for a license must:

- (1) be at least eighteen (18) years of age;
- (2) have completed at least eighty (80) actual hours of auction instruction from a course provider approved by the commission;
- (3) not have a conviction for:
 - (A) an act which would constitute a ground for disciplinary sanction under IC 25-1-11; or
 - (B) a felony that has a direct bearing on the applicant's ability to practice competently.

(c) Auction instruction required under subsection (b) must provide the applicant with knowledge of all of the following:

- (1) The value of real estate and of various goods commonly sold at an auction.
- (2) Bid calling.
- (3) Sale preparation, sale advertising, and sale summary.
- (4) Mathematics.
- (5) The provisions of this article and the commission's rules.
- (6) Any other subject matter approved by the commission.

(d) For purposes of subsection (b)(2), the commission may approve online auction instruction that complies with subsection (c) and is offered by a course provider approved by the commission.

(e) An individual seeking an initial license as an auctioneer under this article shall file with the commission a completed application on the form prescribed by the commission. When filing an application for an auctioneer license, each individual shall pay a nonrefundable examination fee established by the commission under IC 25-1-8-2.

(f) When applying for a renewal of an auctioneer license, each individual shall do the following:

- (1) Apply in a manner required by the commission, including certification by the applicant that the applicant has complied with the requirements of IC 25-6.1-9-8, unless the commission has granted the applicant a waiver under IC 25-6.1-9-9.
- (2) Pay the renewal fee established by the commission under IC 25-1-8-2.

(g) Upon the receipt of a completed application for an initial or a renewal license, the commission shall examine the application and may verify the information contained therein.

(h) An applicant who is seeking an initial license must pass an examination approved by the commission that covers subjects and topics of knowledge required to practice as an auctioneer. The



commission shall hold examinations as the commission may prescribe.

(i) The commission shall issue an auctioneer's license, in such form as it may prescribe, to each individual who meets all of the requirements for licensing and pays the appropriate fees.

(j) Auctioneer licenses shall be issued for a term of four (4) years. Subject to IC 25-1-2-6(e), a license expires at midnight on the date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and every fourth year thereafter, unless renewed before that date. If the license has expired, it may be reinstated not later than four (4) years after the date it expired if the license holder meets the requirements of IC 25-1-8-6(c).

(k) If a license has expired for a period of more than four (4) years, the holder of the license may have the license reinstated by satisfying the requirements for reinstatement under IC 25-1-8-6(d).

(l) The commission may waive the requirement that a nonresident applicant pass an examination and that the nonresident submit written statements by two (2) individuals, if the nonresident applicant:

- (1) is licensed to act as an auctioneer in the state of the applicant's domicile;
- (2) submits with the application a duly certified letter of certification issued by the licensing board of the applicant's domiciliary state;
- (3) is a resident of a state whose licensing requirements are substantially equal to the requirements of Indiana;
- (4) is a resident of a state that grants the same privileges to the licensees of Indiana; and
- (5) includes with the application an irrevocable consent that actions may be commenced against the applicant. The consent shall stipulate that service of process or pleadings on the commission shall be taken and held in all courts as valid and binding as if service of process had been made upon the applicant personally within this state. If any process or pleading mentioned in this subsection is served upon the commission, it shall be by duplicate copies. One (1) of the duplicate copies shall be filed in the office of the commission and one (1) shall be immediately forwarded by the commission by registered or certified mail to the applicant against whom the process or pleadings are directed.

(m) The commission may enter into a reciprocal agreement with another state concerning nonresident applicants.

SECTION 33. IC 25-6.1-3-4, AS AMENDED BY P.L.86-2018, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Every person other than:

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- (1) an individual who is a licensed auctioneer; or
- (2) an individual who has a licensed auction house (until July 1, 2014);

who is seeking to operate as an auction company must obtain a license from the commission. Notwithstanding the fact that an individual who is a licensed auctioneer or (until July 1, 2014) an individual who has a licensed auction house also has an interest in an organization, every organization which seeks to operate an auction company must obtain a license for that auction company.

(b) An individual who holds an unexpired auction house license under IC 25-6.1-3-3 (before its repeal) may file with the commission a completed application for an auction company license on the form prescribed by the commission in rules adopted by the commission under IC 4-22-2. Upon the receipt of a completed application for an auction company license under this chapter, the commission shall examine the application and may verify the information contained in the application. Upon a determination by the commission that an application is complete and verified, the commission shall issue an auction company license, in a form it prescribes, to the applicant for a term equal to the remaining term of the unexpired auction house license. If an individual described in this subsection files a completed application for an auction company license before June 1, 2014, the commission shall determine whether the application is complete and verified before June 15, 2014. If the commission determines that the application is complete and verified, the commission shall issue the individual an auction company license before July 1, 2014.

(c) Every such person shall file with the commission a complete application on the form prescribed by the commission. Each application shall be accompanied by the license fee prescribed by section 5 of this chapter and a surcharge described in IC 25-6.1-8-2.

(d) Upon the receipt of a completed application for an initial or renewal license, the commission shall examine the application and may verify the information contained therein.

(e) Upon a determination by the commission that an application is complete and duly verified, the commission shall issue an auction company license, in such form as it may prescribe, to the applicant.

(f) Auction company licenses shall expire on a date established by the licensing agency under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, and every fourth year thereafter.

(g) If the holder of an auction company license does not renew the license by the date established by the licensing agency, the license expires and becomes invalid without any action taken by the



commission.

(h) The holder of an auction company license that has been expired for not more than four (4) years may have the license reinstated by meeting the requirements under IC 25-1-8-6(c).

(i) The holder of an auction company license that has been expired for more than four (4) years may have the license reinstated by satisfying the requirements for reinstatement under IC 25-1-8-6(d).

(j) Any individual who wishes to operate an auction company, and who is exempt under subsection (a) from obtaining an auction company license, shall, not more than thirty (30) days before the date on which the individual begins to operate an auction company, notify the commission, in a writing signed by the individual, that the individual is operating as an auction company or as more than one (1) auction company. The individual shall specify in such written notification the trade or business name, and the address of the principal place of business, of each auction company which the individual operates. Whenever an individual to whom this subsection applies shall discontinue the operation of an auction company operated by the individual, or shall change its address or trade or business name, the individual shall promptly notify the secretary of the commission of such discontinuance or change, in a writing signed by the individual.

SECTION 34. IC 25-8-3-5, AS AMENDED BY P.L.249-2019, SECTION 57, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Each of the members of the board must reside in Indiana.

(b) Subject to IC 25-1-6.5-3, the members of the board must meet the following qualifications:

(1) Two (2) of the members must:

(A) possess a current cosmetologist license; and

(B) have practiced cosmetology in Indiana continuously for at least five (5) years immediately before appointment.

(2) Two (2) of the members of the board must:

(A) possess a current barber license; and

(B) have practiced barbering in Indiana continuously for at least five (5) years immediately before appointment.

(3) One (1) of the members must be an owner or operator of a beauty culture school. ~~However, the member may not be a licensed barber or cosmetologist.~~

(4) One (1) of the members must be licensed as an electrologist, an esthetician, or a manicurist.

(5) One (1) of the members must not have any association with the practice of beauty culture, except as a consumer.

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SECTION 35. IC 25-8-4-17, AS AMENDED BY P.L.177-2015, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), and except for an instructor license issued under subsection (c) or IC 25-8-6-1, a license issued under this article expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires four (4) years after the initial expiration date.

(b) A license issued to an instructor under IC 25-8-6-1 expires at the time that the instructor's practitioner license expires. The board shall renew an instructor's license under this subsection concurrently with the instructor's practitioner license.

(c) Subject to IC 25-1-2-6(e), initial provisional licenses are valid for a length of time determined by the board, but not to exceed two (2) years.

SECTION 36. IC 25-8-15.4-9, AS AMENDED BY P.L.177-2015, SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) Subject to IC 25-1-2-6(e), a license issued under this chapter expires every fourth year on a date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) The board shall renew a license issued under this chapter if the person that operates the facility pays the fee for renewal established by the board under IC 25-1-8-2 on or before the date established by the licensing agency.

(c) If the holder of a license does not renew the license on or before the renewal date established by the licensing agency, the license expires and becomes invalid without any action by the board.

SECTION 37. IC 25-15-6-1, AS AMENDED BY P.L.177-2015, SECTION 37, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e) and except as provided in subsection (b), a license issued under this article expires on the date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) A funeral director intern license expires two (2) years after it is issued by the board.

SECTION 38. IC 25-20-1-1.5, AS AMENDED BY P.L.249-2019, SECTION 87, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.5. (a) Subject to IC 25-1-6.5-3, there is established the committee of hearing aid dealer examiners which consists of five (5) members all appointed by the governor to a term under IC 25-1-6.5. ~~Three (3)~~ **Four (4)** members must be hearing aid dealers licensed under this chapter, who are residents of this state and who have been practicing as hearing aid dealers for at least one (1) year



prior to their appointment. ~~One (1) member must be an otolaryngologist in this state, who is a resident of this state and who has been engaged in the practice of otolaryngology for at least one (1) year prior to appointment to the committee.~~ One (1) member must be a resident of this state who is in no way associated with the business of hearing aid dealers, audiology, or speech-language pathology other than as a consumer. Whenever a vacancy occurs on the committee, the governor shall appoint a successor under IC 25-1-6.5.

(b) Three (3) members present constitute a quorum.

(c) The members serve without compensation, except that each member is entitled to the salary per diem as provided by IC 4-10-11-2.1 and to reimbursement for travel, lodging, meals, and other expenses as provided in the state travel policies and procedures established by the department of administration and approved by the state budget agency.

(d) A member may be removed under IC 25-1-6.5-4.

SECTION 39. IC 25-20.2-3-8, AS AMENDED BY P.L.84-2016, SECTION 106, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The board shall:

- (1) administer and enforce this article;
- (2) adopt rules under IC 4-22-2 that are reasonably necessary or appropriate for the administration and enforcement of this article;
- (3) prescribe the requirements for and the form of licenses, applications, and other documents that are required by this article;
- (4) grant, deny, suspend, and revoke approval of examinations and courses of study;
- (5) issue, deny, suspend, and revoke licenses in accordance with this article;
- (6) in accordance with IC 25-1-7, investigate complaints concerning licensees or persons the board has reason to believe should be licensees, including complaints concerning failure to comply with this article or rules adopted under this article, and, when appropriate, take action under IC 25-20.2-8;
- (7) bring actions in the name of the state in an appropriate circuit court, superior court, or probate court in order to enforce compliance with this article or rules adopted under this article;
- (8) establish fees in accordance with IC 25-1-8;
- (9) inspect the records of a licensee in accordance with rules adopted by the board;
- (10) conduct or designate a member or other representative to conduct public hearings on any matter for which a hearing is required under this article and exercise all powers granted under IC 4-21.5;

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(11) adopt a seal containing the words "Indiana Home Inspectors Licensing Board" and, through the board's secretary, certify copies and authenticate all acts of the board;

(12) in accordance with ~~IC 25-1-6~~ **IC 25-1-5**:

- (A) use counsel, consultants, and other persons;
- (B) enter into contracts; and
- (C) authorize expenditures;

that are reasonably necessary or appropriate to administer and enforce this article and rules adopted under this article;

(13) establish continuing education requirements for licensed home inspectors in accordance with IC 25-1-4;

(14) maintain the board's office, files, records, and property in the city of Indianapolis; and

(15) exercise all other powers specifically conferred on the board by this article.

SECTION 40. IC 25-20.2-6-1, AS AMENDED BY P.L.177-2015, SECTION 42, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Subject to IC 25-1-2-6(e), a license for a home inspector issued under this article expires on a date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and shall be renewed biennially upon payment of the required renewal fees.

SECTION 41. IC 25-21.5-1-9 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. "Secretary" has the meaning under ~~IC 25-1-6-5(e)~~ **IC 25-1-5-5(c)**.

SECTION 42. IC 25-21.5-8-1, AS AMENDED BY P.L.177-2015, SECTION 45, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e), a certificate of registration expires biennially on the date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) An individual may renew a certificate of registration by paying a renewal fee on or before the expiration date established by the licensing agency.

(c) If an individual fails to pay a renewal fee on or before the expiration date of a certificate of registration, the certificate of registration becomes invalid without any action of the board.

(d) A certificate of registration may be reinstated by the board not later than three (3) years after its expiration if the applicant for reinstatement meets the requirements for reinstatement under IC 25-1-8-6(c).

(e) If a certificate of registration has been expired for more than three (3) years, the certificate of registration may be reinstated by the board if the holder meets the requirements for reinstatement under



IC 25-1-8-6(d).

SECTION 43. IC 25-21.8-6-1, AS AMENDED BY P.L.267-2017, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e), a license issued by the board is valid for four (4) years.

(b) A license expires:

- (1) at midnight on the date established by the licensing agency under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, subject to IC 25-1-2-6(e); and
- (2) every four (4) years thereafter, unless renewed before that date.

SECTION 44. IC 25-23.7-2-8 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. "Secretary" has the meaning set forth in ~~IC 25-1-6-5(e)~~. **IC 25-1-5-5(c)**.

SECTION 45. IC 25-23.7-6-1, AS AMENDED BY P.L.177-2015, SECTION 60, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Notwithstanding IC 25-1-2, but subject to IC 25-1-2-6(e), the holder of a license issued under IC 25-23.7-5 must renew the license and pay the required renewal fee every four (4) years after it is issued on or before the date established by the Indiana professional licensing agency under ~~IC 25-1-6-4~~. **IC 25-1-5-4**.

SECTION 46. IC 25-28.5-1-8, AS AMENDED BY P.L.2-2005, SECTION 67, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The commission may:

- (1) Adopt and promulgate rules and regulations for its guidance and for the regulation of its business and procedure consistent with the provisions of this chapter and in the manner provided in IC 4-22-2.
- (2) Enter into such other contracts and authorize expenditures as its duties require, subject to the provisions of this chapter and ~~IC 25-1-6~~. **IC 25-1-5**.
- (3) Do all things necessary for carrying into effect the provisions of this chapter.

SECTION 47. IC 25-28.5-1-22, AS AMENDED BY P.L.177-2015, SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 22. (a) Subject to IC 25-1-2-6(e), every license or certificate of registration issued under this chapter expires on a date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and shall be renewed biennially thereafter upon payment of the required renewal fees.

(b) Applications for renewal shall be filed with the commission in the form and manner provided by the commission. The application shall be accompanied by the required renewal fee. The commission,



upon the receipt of the application for renewal and the required renewal fee, shall issue to the renewal applicant a license or certificate of registration in the category said applicant has previously held. Subject to IC 25-1-2-6(e), unless renewed, a license issued by the commission expires on the date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(c) Subject to IC 25-1-2-6(e), a license or certificate of registration lapses without any action by the commission if an application for renewal has not been filed and the required fee has not been paid by the established biennial renewal date.

(d) If a license or certificate of registration has been expired for not more than three (3) years, the license or certificate of registration may be reinstated by the commission if the holder of the license or certificate of registration meets the requirements of IC 25-1-8-6(c).

(e) If a license or certificate of registration has been expired for more than three (3) years, the license or certificate of registration may be reinstated by the commission if the holder of the license or certificate of registration meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 48. IC 25-30-1-16, AS AMENDED BY P.L.177-2015, SECTION 68, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) Subject to IC 25-1-2-6(e), unless renewed, a license issued under this chapter expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires every four (4) years after the initial expiration date. An applicant for renewal shall pay the renewal fee established by the board under IC 25-1-8-2 on or before the renewal date specified by the licensing agency.

(b) Subject to IC 25-1-2-6(e), if the holder of a license does not renew the license by the date specified by the licensing agency, the license expires and becomes invalid without any action taken by the board.

(c) If a license has been expired for not more than three (3) years, the license may be reinstated by the board if the holder of the license meets the requirements under IC 25-1-8-6(c).

(d) If a license has been expired for more than three (3) years, the license may be reinstated by the board if the holder of the license meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 49. IC 25-30-1.3-17, AS AMENDED BY P.L.177-2015, SECTION 69, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), unless renewed, a license issued under this chapter expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires every four



(4) years after the initial expiration date. An applicant for renewal shall pay the renewal fee established by the board under IC 25-1-8-2 on or before the renewal date specified by the licensing agency.

(b) Subject to IC 25-1-2-6(e), if the holder of a license does not renew the license by the date specified by the licensing agency, the license expires and becomes invalid without any action taken by the board.

(c) If a license has been expired for not more than three (3) years, the license may be reinstated if the holder of the license meets the requirements under IC 25-1-8-6(c).

(d) If a license has been expired for more than three (3) years, the license may be reinstated by the board if the holder of the license meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 50. IC 25-31-1-17, AS AMENDED BY P.L.177-2015, SECTION 70, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), unless renewed, a certificate issued under this chapter expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires biennially after the initial expiration date. An applicant for renewal shall submit an application in the manner prescribed by the board and pay the renewal fee established by the board under IC 25-1-8-2 on or before the renewal date specified by the licensing agency.

(b) Subject to IC 25-1-2-6(e), if the holder of a certificate does not renew the certificate by the date specified by the licensing agency, the certificate expires and becomes invalid without the board taking any action.

(c) The failure on the part of a registrant to renew a certificate does not deprive the registrant of the right of renewal.

(d) If a certificate has been expired for not more than three (3) years, the certificate may be reinstated by the board if the holder of the certificate meets the requirements for reinstatement under IC 25-1-8-6(c).

(e) If a certificate has been expired for more than three (3) years, the certificate may be reinstated by the board if the holder of the certificate meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 51. IC 25-34.1-2-5, AS AMENDED BY P.L.93-2024, SECTION 191, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The commission may:

- (1) administer and enforce the provisions of this article;
- (2) adopt rules in accordance with IC 4-22-2 and prescribe forms for licenses, applications, and other documents which are necessary or appropriate for the administration and enforcement



of this article;

(3) issue, deny, suspend, and revoke licenses in accordance with this article, which licenses shall remain the property of the commission;

(4) subject to IC 25-1-7, investigate complaints concerning licensees or persons the commission has reason to believe should be licensees, including complaints respecting failure to comply with this article or the rules, and, when appropriate, take action pursuant to IC 25-34.1-6;

(5) bring actions, in the name of the state of Indiana, in an appropriate circuit court, superior court, or probate court in order to enforce compliance with this article or the rules;

(6) inspect the records of a licensee in accordance with rules and standards prescribed by the commission;

(7) conduct, or designate a member or other representative to conduct, public hearings on any matter for which a hearing is required under this article and exercise all powers granted in IC 4-21.5;

(8) adopt a seal containing the words "Indiana Real Estate Commission" and, through its executive director, certify copies and authenticate all acts of the commission;

(9) utilize counsel, consultants, and other persons who are necessary or appropriate to administer and enforce this article and the rules;

(10) enter into contracts and authorize expenditures that are necessary or appropriate, subject to ~~IC 25-1-6~~, **IC 25-1-5**, to administer and enforce this article and the rules;

(11) maintain the commission's office, files, records, and property in the city of Indianapolis;

(12) grant, deny, suspend, and revoke approval of examinations and courses of study as provided in IC 25-34.1-5;

(13) provide for the filing and approval of surety bonds which are required by IC 25-34.1-5;

(14) adopt rules in accordance with IC 4-22-2 necessary for the administration of the investigative fund established under IC 25-34.1-8-7.5;

(15) adopt rules under IC 4-22-2 to adopt any or all parts of Uniform Standards of Professional Appraisal Practice (USPAP), including the comments to the USPAP, as published by the Appraisal Standards Board of the Appraisal Foundation, under the authority of Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (12 U.S.C. 3331-3351);

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(16) exercise other specific powers conferred upon the commission by this article; and

(17) adopt rules under IC 4-22-2 governing education, including prelicensing, postlicensing, and continuing education.

SECTION 52. IC 25-34.1-3-4.1, AS AMENDED BY P.L.32-2020, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.1. (a) To obtain a broker license, an individual must:

(1) be at least eighteen (18) years of age before applying for a license and must not have a conviction for:

(A) an act that would constitute a ground for disciplinary sanction under IC 25-1-11;

(B) a crime that has a direct bearing on the individual's ability to practice competently; or

(C) a crime that indicates the individual has the propensity to endanger the public;

(2) have a high school diploma or a general educational development (GED) diploma under IC 20-20-6 (before its repeal) or IC 22-4.1-18;

(3) have successfully completed an approved broker course of study as prescribed in IC 25-34.1-5-5;

(4) apply for a license by submitting the application fee prescribed by the commission and an application specifying:

(A) the name, address, and age of the applicant;

(B) the broker company with which the applicant intends to associate;

(C) the address of the broker company;

(D) proof of compliance with subdivisions (2) and (3); and

(E) any other information the commission requires;

(5) pass a written examination prepared and administered by the commission or its duly appointed agent; and

(6) within one (1) year after passing the commission examination, submit the license fee established by the commission under IC 25-1-8-2. If an individual applicant fails to file a timely license fee, the commission shall void the application and may not issue a license to that applicant unless that applicant again complies with the requirements of subdivisions (4) and (5) and this subdivision.

(b) To obtain a broker license, a partnership must:

(1) have as partners only individuals who are licensed brokers;

(2) have at least one (1) partner who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;



- (3) cause each employee of the partnership who acts as a broker to be licensed; and
 - (4) submit the license fee established by the commission under IC 25-1-8-2 and an application setting forth the name and residence address of each partner and the information prescribed in subsection (a)(4).
- (c) To obtain a broker license, a corporation must:
- (1) have a licensed broker who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
 - (2) cause each employee of the corporation who acts as a broker to be licensed; and
 - (3) submit the license fee established by the commission under IC 25-1-8-2, an application setting forth the name and residence address of each officer and the information prescribed in subsection (a)(4), a copy of the certificate of incorporation, and a certificate of good standing of the corporation issued by the secretary of state.
- (d) To obtain a broker license, a limited liability company must:
- (1) if a member-managed limited liability company:
 - (A) have as members only individuals who are licensed brokers; and
 - (B) have at least one (1) member who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
 - (2) if a manager-managed limited liability company, have a licensed broker who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
 - (3) cause each employee of the limited liability company who acts as a broker to be licensed; and
 - (4) submit the license fee established by the commission under IC 25-1-8-2 and an application setting forth the information prescribed in subsection (a)(4), together with:
 - (A) if a member-managed company, the name and residence address of each member; or
 - (B) if a manager-managed company, the name and residence address of each manager, or of each officer if the company has officers.
- (e) Licenses granted to partnerships, corporations, and limited liability companies are issued, expire, are renewed, and are effective on the same terms as licenses granted to individual brokers, except as provided in subsection (h), and except that expiration or revocation of the license of:
- (1) any partner in a partnership or all individuals in a corporation



satisfying subsection (c)(1); or

(2) a member in a member-managed limited liability company or all individuals in a manager-managed limited liability company satisfying subsection (d)(2);

terminates the license of that partnership, corporation, or limited liability company.

(f) Upon the applicant's compliance with the requirements of subsection (a), (b), or (c), the commission shall issue the applicant a broker license and an identification card which certifies the issuance of the license and indicates the expiration date of the license. The license shall be displayed at the broker's place of business. For at least two (2) years after the issuance of a license, the individual cannot be a managing broker. An individual who applies for a broker's license after June 30, 2014, must, during the first two (2) years after the license is issued, take and pass at least thirty (30) hours of postlicensing education focused on the practical matters of real estate transactions instead of the continuing education requirements under IC 25-34.1-9.

(g) Subject to IC 25-1-2-6(e), unless the license is renewed, a broker license expires, for individuals, on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires three (3) years after the initial expiration date. An applicant for renewal shall submit an application in the manner prescribed by the commission and pay the renewal fee established by the commission under IC 25-1-8-2 on or before the renewal date specified by the licensing agency. If the holder of a license does not renew the license by the date specified by the licensing agency, the license expires and becomes invalid without the commission taking any action.

(h) Subject to IC 25-1-2-6(e), if the holder of a license under this section fails to renew the license on or before the date specified by the licensing agency, the license may be reinstated by the commission if the holder of the license, not later than three (3) years after the expiration of the license, meets the requirements of IC 25-1-8-6(c).

(i) If a license under this section has been expired for more than three (3) years, the license may be reinstated by the commission if the holder meets the requirements for reinstatement under IC 25-1-8-6(d).

(j) A partnership, corporation, or limited liability company may be only a broker company, except as authorized in IC 23-1.5 and subject to section 4.5 of this chapter. An individual broker who associates with a broker company shall immediately notify the commission:

- (1) of the name and business address of the broker company with which the individual broker is associating; and
- (2) of any changes of the broker company with which the



individual broker is associated that may occur.

Upon receiving notice under subdivision (1) or (2), the commission shall change the address of the individual broker on its records to that of the broker company.

SECTION 53. IC 25-34.1-11-11, AS ADDED BY P.L.77-2010, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) A person may not own an interest in an appraisal management company if the person has had the person's license or certificate to act as a real estate appraiser in Indiana or any other state revoked, **refused, denied, canceled, or surrendered in lieu of revocation, for a substantive cause, as determined by the appropriate state appraiser certifying and licensing agency**, and the license or certificate has not been reinstated.

(b) An appraisal management company may only hire an independent contractor to perform an appraisal who:

- (1) holds a license or certificate under IC 25-34.1-3-8 or a license as a real estate broker under IC 25-34.1; and
- (2) is in good standing.

(c) An appraisal management company may not corrupt or improperly influence a real estate appraiser in violation of IC 24-5-23.5-7.

SECTION 54. IC 25-34.5-2-2, AS AMENDED BY P.L.249-2019, SECTION 132, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Subject to IC 25-1-6.5-3, the committee consists of five (5) members to be appointed by the governor as follows:

- (1) ~~At least two~~ **(2) Four (4)** practitioners.
- (2) ~~At least one (1) physician licensed under IC 25-22.5 who is familiar with the practice of respiratory care.~~
- (3) **(2) At least One (1)** member who:
 - (A) is a resident of Indiana; and
 - (B) is not associated with the practice of respiratory care in any way, other than as a consumer.

(b) Each practitioner appointed to the committee must:

- (1) be a practitioner meeting the requirements of this article;
- (2) have had not less than three (3) years experience in the actual practice of respiratory care immediately preceding appointment; and
- (3) be a resident of Indiana and actively engaged in Indiana in the practice of respiratory care while serving as a member of the committee.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

HEA 1230

